

Defendants to address her concerns in completing the restorations, and that Plaintiff reasonably relied on Defendants representations when proceeding with the treatment. 9:20-10:2.

These allegations are insufficient. Plaintiff has failed to plead facts which show how, when, where, to whom, and by what means the representations were tendered. She also fails to allege an intent to defraud. The demurrer as to the third cause of action is sustained. The Court finds there is possibility the defect can be corrected by amendment, so leave to amend is granted.

Fourth Cause of Action – Concealment

Defendant argues the fourth cause of action for fraudulent concealment again fails to identify who engaged in what alleged concealment, when the alleged duty to disclose arose, when the alleged concealment occurred, and sufficient facts showing defendants intentionally concealed information with the intent to defraud plaintiff. The Court agrees.

The elements for fraudulent concealment are: (1) the defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of other fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. *Lovejoy*, 119 Cal.App.4th at 157-158.

At bar, the SAC alleges, “Defendants presented Plaintiff with digital Smile Vision imagery generated using photographs of Plaintiff depicting the anticipated cosmetic outcome of the proposed treatment.... The Smile Vision imagery was material to Plaintiff’s decision to proceed with treatment.... Defendants did not inform Plaintiff that the Smile Vision imagery would not be retained, would become unavailable, or should be downloaded or preserved for future reference.... Plaintiff notified Defendants’ office that the link was not functioning and requested access. Plaintiff was subsequently informed that the imagery had not been retained and was no longer available.” SAC, 10:21-11:15.

Here, again, Plaintiff has not sufficiently alleged all elements of a cause of action for fraud by concealment. As such, the demurrer as to the fourth cause of action is sustained. The Court finds there is possibility the defect can be corrected by amendment; accordingly, leave to amend is granted.

10. CU21-086089 George L. Horner, et al. vs. Deborah Carver

The Court is satisfied, based on its review of the entire record, that the premises must be vacated and all items of personal property removed in order to facilitate the most effective marketing and sale of the property. Pursuant to its statutory and equitable authority, the Court orders Defendant and any other residents on the premises to vacate the premises and to remove all of their personal belongings from the premises within thirty days, that is, by no later than October 18, 2026, noon. Judgment was entered in February 2024 and Defendant has had in excess of two years to prepare a departure from the premises. The premises *shall* be vacated by the deadline noted *without fail*.